

26CMCV00653 26CMCV00653

County: los-angeles

Division: Civil Law and Motion

Department: A

Hearing date: 2026-07-02

Motion: DEFENDANT'S DEMURRER TO THE COMPLAINT

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Case Number: 26CMCV00653 Hearing Date: July 2, 2026 Dept: A

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES – SOUTH CENTRAL DISTRICT

BRIAN J. CARLIN,

Plaintiff,

vs.

JOHN

JOHNSON, et al.,

Defendants.

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CASE NO: 26CMCV00653

[TENTATIVE]

ORDER RE: DEFENDANT'S DEMURRER TO THE COMPLAINT

Dept.

A

DATE:

July 2, 2026

TIME:

8:30 A.M.

COMPLAINT

FILED: 04/09/2026

TRIAL:

None

MOVING

PARTY: Defendant John Johnson

RESPONDING

PARTY: Plaintiff Brian J. Carlin

1. Background

This is an unlawful detainer action. Plaintiff Brian J. Carlin ("Plaintiff") alleges that he is the owner of the property located at 12901-C S. Budlong Ave., Gardena, CA 90247 (the "Property"). Plaintiff alleges that defendants John Johnson, Camala Johnson, and Andrew Jones (collectively, "Defendants") leased the Property on a month-to-month tenancy. Plaintiff alleges that he served a 60-day notice of termination of tenancy and then a three-day notice to quit upon Defendants, but that Defendants failed to vacate the Property by the noticed date.

2. Discussion

Defendant John

Johnson ("Movant") demurs to the complaint on the grounds that he vacated the Property in 2006 and has not resided at, occupied, or possessed the premises since that time. In opposition, Plaintiff contends that a factual assertion is not proper grounds for demurrer.

A demurrer for

sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747 (Hahn).) When considering demurrers, courts read the allegations liberally and in context. (Taylor v. City of Los Angeles Dept. of Water and Power (2006) 144 Cal.App.4th 1216, 1228.) In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) "A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed." (SKF Farms v. Superior Court (1984) 153 Cal.App.3d 902, 905.) "The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action." (Hahn, supra, 147 Cal.App.4th at p. 747.)

The ultimate

facts alleged in the complaint must be deemed true, as well as all facts that may be implied or inferred from those expressly alleged. (Marshall v. Gibson, Dunn & Crutcher (1995) 37 Cal.App.4th 1397, 1403; see also Shields v. County of San Diego (1984) 155 Cal.App.3d 103, 133 [stating, “[o]n demurrer, pleadings are read liberally and allegations contained therein are assumed to be true.”]) “The court does not, however, assume the truth of contentions, deductions or conclusions of law. [Citation.]” (Durell v. Sharp Healthcare (2010) 183 Cal.App.4th 1350, 1358.)

The complaint

alleges that Defendants, including Movant, were in possession of the Property as of the filing of the complaint on April 9, 2026. Movant’s contention that he has not been in possession of the Property since 2006 is directly contradictory to the factual allegations in the complaint. As all factual allegations in the complaint are deemed true at the demurrer stage, this contention is not grounds for demurrer. Movant makes no other argument as to why demurrer is proper.

The court will

therefore overrule Movant’s demurrer.

3. Conclusion

Based on the

foregoing, the court OVERRULES Defendant John Johnson’s demurrer to the complaint.

The court directs the clerk to give notice.

IT IS SO ORDERED.

DATED: July 2, 2026

Hon. Elizabeth L. Bradley

Judge of the Superior Court